

COMMITTEE ON JUDICIARY AND ELECTIONS
SENATE AMENDMENTS TO S.B. 1049
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 25-319, Arizona Revised Statutes, is amended to
3 read:

4 25-319. Spousal maintenance; supreme court guidelines;
5 computation factors; court jurisdiction; definition

6 A. In a proceeding for dissolution of marriage or legal separation,
7 or a proceeding for maintenance following dissolution of the marriage by a
8 court that lacked personal jurisdiction over the absent spouse, the court
9 may grant a maintenance order for either spouse for any of the following
10 reasons if ~~it~~ THE COURT finds that the spouse seeking maintenance:

11 1. ~~Lacks sufficient property, including property apportioned to the~~
12 ~~spouse, to~~ IS UNABLE TO provide for that spouse's OWN reasonable needs
13 THROUGH A COMBINATION OF EARNING ABILITY AND PROPERTY APPORTIONED TO THE
14 SPOUSE SEEKING MAINTENANCE.

15 ~~2. Lacks earning ability in the labor market that is adequate to be~~
16 ~~self-sufficient.~~

17 ~~3.~~ 2. Is the parent of a child whose age or condition is such that
18 the parent should not be required to seek employment outside the home AND
19 DOES NOT HAVE SUFFICIENT PROPERTY APPORTIONED TO THAT PARENT OR OTHER
20 INCOME SOURCES TO PROVIDE FOR THE CHILD'S REASONABLE NEEDS.

21 ~~4.~~ 3. Has made a significant financial or other contribution to
22 the education, training, vocational skills, career or earning ability of
23 the other spouse or has significantly reduced that spouse's income or
24 career opportunities for the benefit of the other spouse AND DOES NOT HAVE
25 SUFFICIENT PROPERTY APPORTIONED TO THE SPOUSE SEEKING MAINTENANCE OR OTHER
26 INCOME SOURCES PROVIDED FOR THAT SPOUSE'S OWN REASONABLE NEEDS.

27 ~~5.~~ 4. Had a marriage of long duration and is of an age that may
28 preclude the possibility of gaining employment adequate to be

1 self-sufficient AND DOES NOT HAVE SUFFICIENT PROPERTY APPORTIONED TO THE
2 SPOUSE SEEKING MAINTENANCE OR OTHER INCOME SOURCES TO PROVIDE FOR THAT
3 SPOUSE'S OWN REASONABLE NEEDS.

4 B. The supreme court shall establish guidelines for determining and
5 awarding spousal maintenance. The court may award spousal maintenance
6 pursuant to the guidelines only for a period of time and in an amount
7 necessary to enable the receiving spouse to become self-sufficient. THE
8 COURT MAY NOT AWARD SPOUSAL MAINTENANCE FOR A PERIOD OF MORE THAN
9 [] [FOUR] YEARS. The amount of spousal maintenance resulting
10 from the application of the guidelines shall be the amount of spousal
11 maintenance ordered by the court, unless the court finds in writing that
12 applying the guidelines would be inappropriate or unjust. The supreme
13 court shall base the guidelines and criteria for deviation from the
14 guidelines on the following relevant factors ~~listed in paragraphs 1~~
15 ~~through 13 of this subsection and~~ AS considered together and weighed in
16 conjunction with each other:

17 1. ONE-HALF OF the standard of living established during the
18 marriage.

19 2. The duration of the marriage.

20 3. The age, employment history, earning ability and physical and
21 emotional condition of the spouse seeking maintenance.

22 4. The ability of the spouse from whom maintenance is sought to
23 meet that spouse's needs while meeting those of the spouse seeking
24 maintenance.

25 5. The comparative financial resources of the spouses, including
26 their comparative earning abilities in the labor market.

27 6. The contribution of the spouse seeking maintenance to the
28 earning ability of the other spouse.

29 7. The extent to which the spouse seeking maintenance has reduced
30 that spouse's income or career opportunities for the benefit of the other
31 spouse.

32 8. The ability of both parties after the dissolution to contribute
33 to the future educational costs of their mutual children.

34 9. The financial resources of the ~~party~~ SPOUSE seeking maintenance,
35 including marital property apportioned to that spouse, and that spouse's
36 ability to meet that spouse's own needs independently.

37 10. The time necessary to acquire sufficient education or training
38 to enable the ~~party~~ SPOUSE seeking maintenance to find appropriate
39 employment and whether such education or training is readily available.

40 11. Excessive or abnormal expenditures, destruction, concealment or
41 fraudulent disposition of community, joint tenancy and other property held
42 in common.

43 12. The cost for the spouse who is seeking maintenance to obtain
44 health insurance and the reduction in the cost of health insurance for the
45 spouse from whom maintenance is sought if the spouse from whom maintenance
46 is sought is able to convert family health insurance to employee health
47 insurance after the marriage is dissolved.

1 13. All actual damages and judgments from conduct that resulted in
2 criminal conviction of either spouse in which the other spouse or a child
3 was the victim.

4 C. A maintenance order shall be made without regard to marital
5 misconduct.

6 D. If both parties agree, the maintenance order and a decree of
7 dissolution of marriage or of legal separation may state that its
8 maintenance terms shall not be modified.

9 E. Except as provided in subsection D of this section or section
10 25-317, subsection G, the court shall maintain continuing jurisdiction
11 over the issue of maintenance for the period of time maintenance is
12 awarded.

13 F. FOR THE PURPOSES OF THIS SECTION, "REASONABLE NEEDS":

14 1. MEANS BASIC NECESSITIES THAT ARE NECESSARY TO ENABLE A RECEIVING
15 SPOUSE TO ACQUIRE EDUCATION OR TRAINING TO BECOME SELF-SUFFICIENT OR THAT
16 ARE NECESSARY FOR THE CARE OF A CHILD.

17 2. INCLUDES FOOD, HOUSING, UTILITIES, HEALTH INSURANCE, MEDICAL
18 EXPENSES, TRANSPORTATION AND EDUCATIONAL EXPENSES.

19 Enroll and engross to conform

20 Amend title to conform

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